

26VECV00915 26VECV00915

County: los-angeles

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Case Number: 26VECV00915 Hearing Date: September 10, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Karolin Bidrussian,

Plaintiff,

v.

Chedraui USA Inc.

Defendant.

Case Number Department

26VECV00915 107

COURT'S [TENTATIVE]

ORDER RE:

Motions to Compel Further Discovery

Responses

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant Motion (RFPs), Motion
(Special Interrogatories), and Motion (RFAs) and grant request for

monetary sanctions against Defendant in the
reduced sum of \$5,000.00;

and (2) Deny Motion (Form
Interrogatories) and request for sanctions.

I.

BACKGROUND

On

January 13, 2025, Plaintiff Karolin Bidrussian ("Plaintiff") was shopping at a
Smart and Final Store located at 22631 Ventura Blvd, Woodland Hills, CA 91364.
(Complaint p. 5.) Plaintiff slipped and fell on a liquid spill. (Complaint p.
5.) Plaintiff sustained injuries. (Complaint p. 5.)

On

February 13, 2026, Plaintiff filed a complaint against Defendants Chedraui USA,
Inc. and Does 1 to 50, alleging causes of action for: (1) general negligence;
and (2) premises liability.

On

May 27, 2026, Plaintiff filed: (1) a motion for order compelling further
responses re: Defendant's response to Plaintiff's Request for the Production of
Documents Nos. 25-27 and 29-32 (Set One) (the "Motion (RFPs)"); (2) a motion
for order compelling further responses re: Defendant's response to Plaintiff's
Special Interrogatories Nos. 20-32 (Set One) (the "Motion (Special
Interrogatories)"); (3) a motion for order compelling further responses re:
Defendant's response to Plaintiff' Form Interrogatory (Set One), Number 15.1
(the "Motion (Form Interrogatories)"); and (4) a motion for order compelling
further responses re: Defendant's response to Plaintiff's Request for Admission
No. 26 (Set One) (the "Motion (RFAs)") (collectively, the "Motions"). On August 28, 2026, Defendant Chedraui USA,
Inc. ("Defendant") filed oppositions. On September 2, 2026, Plaintiff filed
replies.

II.

MEET

AND CONFER

Motions to compel

further responses to demands for inspection, copying, testing, or sampling, interrogatories, and requests for admission must be accompanied by a “meet and confer” declaration.”¿ (See Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2), 2033.290, subd. (b)(1).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel's

declarations show sufficient meet and confer efforts. (Innabi Declaration (RFPs) ¶ 6; Innabi Declaration (Special Interrogatories) ¶ 6; Innabi Declaration (Form Interrogatories) ¶ 6; Innabi Declaration (RFAs) ¶ 6.)

III.

TIMELINESS

Motions to compel further responses to demands

for inspection, copying, testing, or sampling, interrogatories, and requests for admission must be brought within 45 days of receiving the challenged responses, or as otherwise agreed upon in writing.¿ (Code Civ. Proc. §§ 2031.310, subd. (c), 2030.300, subd. (c), 2033.290, subd. (c).)

The parties agreed to

extend the deadline to file the Motions to June 27, 2026. (Monty Declaration (Special Interrogatories) ¶ 8; Monty Declaration (Form Interrogatories) ¶ 8; Monty Declaration (RFPs) ¶ 8; Monty Declaration (RFAs) ¶ 8.) The Motions were timely filed.

IV.

MOTION

(RFPS)

a.

Legal

Standard

“On receipt of a response to a demand

for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).) “The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) c c c

“In a motion under subdivision (a)

relating to the production of electronically stored information, the party or affected person objecting to or opposing the production, inspection, copying, testing, or sampling of electronically stored information on the basis that the information is from a source that is not reasonably accessible because of the undue burden or expense shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense.” (Code Civ. Proc., § 2031.310, subd. (d).) c c c

“Except

as provided in subdivision (j), the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

b.

Discussion

Plaintiff

moves to compel Defendant to provide further responses to RFP Nos. 25-27 and 29-32. (Motion (RFPs) p. 2.)

In

opposition, Defendant states it provided supplemental responses to RFP Nos. 25-27 and 29-30 and only RFP Nos. 31 and 32 are still at issue. (Opposition (RFPs) p. 2.) Defendant argues that as to the remaining RFPs, the relevant

issue is proportionality, not admissibility. (Opposition (RFPs) p. 5.)

Defendant argues the RFPs are overbroad because they do not “‘attract the defendant’s attention’ to the hazard at issue here: an alleged single, employee-created spill from a leaking case of returned water, at the front end of the store, existing for a matter of minutes.” (Opposition (RFPs) p. 7.)

Defendant further argues that RFP No. 32 invokes third party privacy rights. (Opposition (RFPs) p. 8.) Finally, Defendant argues Plaintiff’s separate statement is deficient because “Plaintiff’s separate statement addresses Requests Nos. 31 and 32 the same way” and it “cite[s] former rule 335, renumbered nearly two decades ago.” (Opposition (RFPs) p. 8.)

In

reply, Plaintiff argues Defendant’s primary defense “relies entirely on whether its retail market had adequate safety and maintenance protocols that were actually followed by its employees” so “the issue of whether there is evidence demonstrating past breaches of Defendant’s obligation to maintain a safe property is clearly relevant.” (Reply (RFPs) p. 3, original italics.)

Defendant

supplemented its responses, so the Motion as to RFP Nos. 25-27 and 29-30 is moot. The court addresses RFP Nos. 31 and 32.

California

Rules of Court, rule 3.1345(a) requires motions to compel further responses to demands for inspection of documents or tangible things to be accompanied by a separate statement. Per California Rules of Court, rule 3.1345(c):

A separate statement

is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

(1) The text of the

request, interrogatory, question, or inspection demand;

(2) The text of each response, answer, or objection, and any further responses or answers;

(3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;

(4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;

(5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and

(6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.

Trial

courts have discretion to deny motions to compel discovery because of defective separate statements. (Mills v. U.S. Bank (“Mills”) (2008) 166 Cal.App.4th 871, 893.)

Plaintiff's

separate statement does not comply with California Rules of Court, rule 3.1345 because Plaintiff does not include the text of defined terms, including “UNSAFE CONDITION”, “FOREIGN SUBSTANCE” and “PREMISES[.]” (Separate Statement.) Plaintiff also combined the legal arguments as to RFP Nos. 31 and 32.

The

court however, will exercise its discretion and consider the Motion (RFPs).

RFP

No. 31 seeks “[t]he civil complaints for any lawsuits filed against YOU alleging a bodily injury caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT.” (Separate Statement (RFPs) p. 2.)

Defendant
responded:

OBJECTION. This request is overly broad. Also, this request seeks production of documents which have no relevance to the subject matter of this lawsuit; as such, this request is not calculated to lead to the discovery of admissible evidence. This request is burdensome and oppressive to Responding Party as it seeks production of documents which are equally available to Plaintiff.

(Separate
Statement (RFPs) p. 2.)

“PREMISES”

is defined as “the publically accessible areas of the ‘Smart & Final’ store located at 22631 Ventura Boulevard, Woodland Hills, CA 91364 and referenced in Plaintiff’s Complaint.” (Innabi Declaration (RFPs) Ex. A pdf p. 20.)

“UNSAFE

CONDITION” and “UNSAFE CONDITIONS” are defined as “a condition on/in the PREMISES that creates an unreasonable risk of harm to anyone coming onto the PREMISES.” (Inabbi Declaration (RFPs) Ex. A pdf p. 20.)

“FOREIGN

SUBSTANCE” or “FOREIGN SUBSTANCES” are defined as “any transitory substance whether liquid or solid (or any residue thereof), that can create an UNSAFE CONDITION on floors of the PREMISES.” (Inabbi Declaration (RFPs) Ex. A pdf p. 21.)

RFP

No. 31 is not overbroad. Although Defendant argues it may cover different dangerous conditions, such as a grape dropped in the produce aisle, “FOREIGN SUBSTANCE” is a defined term, and Plaintiff persuasively argues different types of foreign substances are relevant to inspection and response. (Reply (RFPs) pp. 5-6.)

Code

of Civil Procedure section 2017.010 states:

Unless otherwise

limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

“In the context of

discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.

Admissibility is not the test, and it is sufficient if the information sought might reasonably lead to other, admissible evidence.” (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117, original italics.)

Plaintiff

in reply submits Defendant’s response to Special Interrogatories Nos. 11 and 12, where Defendant responded it had no actual notice of the condition and “[n]o person informed any employee or representative of Defendant of any unsafe condition in the area where Plaintiff fell prior to the incident occurring.” (Innabi Declaration (RFPs Reply) pdf pp. 14-15.)

The

court finds RFP No. 31 is relevant to whether Defendant had notice of the alleged dangerous condition. Defendant cannot simultaneously claim it had no notice of the condition and prevent Plaintiff from obtaining discovery relevant to Defendant’s notice.

Finally,

the court sees no reason why civil complaints filed against Defendant would be

equally available to Plaintiff.

Defendant

is ordered to provide a further response to RFP. No. 31.

RFP

NO. 32 seeks "[a]ny and all non-privileged DOCUMENTS relating to any CLAIMS made against YOU alleging a bodily injury caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT." (Separate Statement (RFPs) p. 2.)

Defendant

responded:

OBJECTION. This

request is overly broad. Also, this request seeks production of documents which have no relevance to the subject matter of this lawsuit; as such, this request is not calculated to lead to the discovery of admissible evidence. This request is burdensome and oppressive to Responding Party as it seeks production of documents which are equally available to Plaintiff.

(Separate

Statement (RFPS) p. 3.)

For

the same reasons RFP No. 31 is relevant and not overbroad, RFP No. 32 is also relevant and not overbroad and the court sees no reason why the documents would be equally available to Plaintiff.

In

opposition, Defendant also argues responding to RFP No. 32 implicates third party privacy rights. (Opposition (RFPs) p. 8.)

"The party asserting a privacy

right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the

loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Court (“Williams”) (2017) 3 Cal.5th 531, 552-553.)

The

court here lacks sufficient information to show responding to RFP No. 32 would implicate third party privacy rights.

Defendant

is ordered to provide a further response to RFP No. 32. If responding to RFP No. 32 requires producing documents that implicate third party privacy rights, Defendant may, as appropriate, move for a protective order.

Plaintiff

seeks monetary sanctions against Defendant in the sum of \$2,000.00. (Motion p. 2.) This reflects four hours of attorneys’ fees to prepare the Motion and reply and appear at the Motion’s hearing, at \$500.00 per hour. (Innabi Declaration (RFPs) ¶ 10.)

In

opposition, Defendant argues the court should not award sanctions because Defendant extended the deadline to file the Motion (RFPs) to June 27, 2026, but Plaintiff filed the Motion (RFPs) on May 27, 2026, a month early. (Opposition (RFPs) p. 10.) Defendant also argues Plaintiff has suffered no prejudice and the amount requested is duplicative because Plaintiff seeks \$2,000.00 on each of the four substantially similar Motions. (Opposition (RFPs) p. 11.) Defendant argues Plaintiff has not produced sufficient evidence to support the sanctions. (Opposition (RFPs) p. 11.) Finally, Defendant argues Plaintiff’s separate statement does not comply with California Rules of Court, rule 3.1345(c), so Plaintiff should not recover fees. (Opposition (RFPs) p. 12.)

The

court understands Defendant’s counsel’s firm underwent staffing changes. (Monty Declaration (RFPs) ¶ 2.) The court also understands Plaintiff filed the Motion (RFPs) in advance of the deadline. (Monty Declaration (RFPs) ¶ 8.) However, as acknowledged by Defendant’s counsel, Plaintiff’s counsel sent two emails on May 8, 2026, and May 19, 2026, to multiple persons at the firm. (Monty Declaration (RFPs) ¶ 10.) The emails were “inadvertently missed” and Plaintiff filed the Motion (RFPs). (Monty Declaration (RFPs) ¶ 10; Innabi Declaration (RFPs) ¶¶ 7-9.) Staffing issues did not entitle Defendant’s counsel’s firm to leave Plaintiff’s counsel in the dark as to whether Defendant would supplement its

responses. Further, although Defendant's counsel Dallas O'Day left the firm, Defendant's current counsel acknowledges that other persons at Defendant's counsel's firm were copied on the emails. (Monty Declaration (RFPs) ¶¶ 2, 10.) There is no explanation as to why those persons did not respond to Plaintiff's counsel's inquiries.

The
court finds Defendant did not act with substantial justification and no other circumstances make imposing sanctions unjust.

The
court grants Plaintiff's request for sanctions in the requested sum of \$2,000.00.

V.
MOTION
(SPECIAL INTERROGATORIES)

a.
Legal
Standard

If the responding party responds to interrogatories with inappropriate objections or evasive or incomplete answers, the propounding party may move for an order compelling a further response. (Code Civ. Proc. §2030.300, subd. (a).)

Code
of Civil Procedure section 2030.300, subdivision (d) states: "[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

b.
Discussion

Plaintiff
moves for an order compelling Defendant to provide further responses to Special

Interrogatories, Set One, Nos. 20-32. (Motion (Special Interrogatories) p. 2.)

In

opposition, Defendant argues Special Interrogatory Nos. 20-32 are not proportional, seek information about incidents that do not resemble the incident here, and implicate third party privacy rights. (Opposition (Special Interrogatories) pp. 5-8.) Defendant also argues Plaintiff's separate statement does not comply with California Rules of Court, rule 3.1345 and sanctions are not warranted. (Opposition (Special Interrogatories) pp. 8-12.)

Special

Interrogatory No. 20 states "[d]escribe with specificity each and every complaint received by YOU relating to an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT." (Separate Statement (Special Interrogatories) p. 2.)

Special

Interrogatory No. 21 states "[i]dentify when each and every complaint was received by YOU relating to an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT." (Separate Statement (Special Interrogatories) p. 2.)

Special

Interrogatory No. 22 states "[i]dentify the PERSON (by name, title and last known address and phone number) who made each and every complaint received by YOU relating to an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT." (Separate Statement (Special Interrogatories) p. 2.)

Special

Interrogatory No. 23 states "[i]dentify to which of YOUR employees (by name, title and last known address and phone number) any complaint(s) was/were received relating to an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT." (Separate Statement (Special Interrogatories) p. 3.)

Special

Interrogatory No. 24 states "[a]re YOU aware of any prior complaints of bodily injury where it was alleged that the injury was caused by the presence of a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the

INCIDENT?" (Separate Statement (Special Interrogatories) p. 3.)

Special

Interrogatory No. 25 states:

Identify each and

every PERSON (by name, title and last known address and phone number) who made a complaint of bodily injury where it was alleged that the injury was caused by the presence of a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT.

(Separate

Statement (Special Interrogatories) p. 3.)

Special

Interrogatory No. 26 states "[a]re YOU aware of any CLAIMS made against YOU relating to a bodily injury alleged to have been caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT?" (Separate Statement (Special Interrogatories) p. 3.)

Special

Interrogatory No. 27 states "[d]escribe with specificity the facts of each and every CLAIM made against YOU relating to a bodily injury alleged to have been caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT." (Separate Statement (Special Interrogatories) p. 4.)

Special

Interrogatory No. 28 states "[i]dentify when each and every CLAIM that was made against YOU relating to a bodily injury alleged to have been caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT." (Separate Statement (Special Interrogatories) p. 4.)

Special

Interrogatory No. 29 states:

Identify the PERSON

(by name, title and last known address and phone number) who made each and every CLAIM made against YOU relating to a bodily injury alleged to have been

caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT.

(Separate
Statement (Special Interrogatories) p. 4.)

Special

Interrogatory No. 30 states “[a]re YOU aware of any lawsuits filed against YOU alleging a bodily injury caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT?” (Separate Statement (Special Interrogatories) p. 4.)

Special

Interrogatory No. 31 states “[i]dentify each and every lawsuit (by case number and the County where the complaint was filed) filed against YOU alleging a bodily injury caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT.” (Separate Statement (Special Interrogatories) pp. 4-5.)

Special

Interrogatory No. 32 states “[i]dentify each and every PERSON (by name, title and last known address and phone number) who filed a lawsuit against YOU alleging a bodily injury caused by an UNSAFE CONDITION due to a FOREIGN SUBSTANCE on the floor of the PREMISES in the five years prior to the INCIDENT.” (Separate Statement (Special Interrogatories) p. 5.)

Defendant

responded: “OBJECTION. This interrogatory is overly broad. This interrogatory seeks information which has no relevance to the subject matter of this lawsuit; as such, this interrogatory is not calculated to lead to the discovery of admissible evidence.” (Separate Statement (Special Interrogatories) p. 5.)

California

Rules of Court, rule 3.1345(a) requires motions to compel further responses to interrogatories to be accompanied by a separate statement. Per California Rules of Court, rule 3.1345(c):

A separate statement

is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the

responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

(1) The text of the request, interrogatory, question, or inspection demand;

(2) The text of each response, answer, or objection, and any further responses or answers;

(3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;

(4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;

(5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and

(6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.

Trial

courts have discretion to deny motions to compel discovery because of defective separate statements. (Mills, *supra*, 166 Cal.App.4th at p. 893.)

Plaintiff's

separate statement does not comply with California Rules of Court, rule 3.1345 because it does not contain all of the relevant definitions and does not break down Plaintiff's legal argument by Special Interrogatory. However, the court will exercise its discretion and consider the Motion.

"PREMISES"

is defined as "the publically accessible areas of the 'Smart & Final' store located at 22631 Ventura Boulevard, Woodland Hills, CA 91364 and referenced in Plaintiff's Complaint." (Innabi Declaration (Special Interrogatories) Ex. A pdf p. 16.)

"CLAIMS"

is defined as "any incident involving any person who sustained any injury or damages as a result of being within the same area of the PREMISES at issue." (Innabi Declaration (Special Interrogatories) Ex. A pdf p. 16.)

"FOREIGN

SUBSTANCE" or "FOREIGN SUBSTANCES" are defined as "any transitory substance whether liquid or solid (or any residue thereof), that can create an UNSAFE CONDITION on floors of the PREMISES." (Innabi Declaration (Special Interrogatories) Ex. A pdf p. 17.)

The

Special Interrogatories are not overbroad. They are limited to the five years prior to the incident and limited to transitory substances within the publicly accessible areas of the Smart & Final store at issue here.

For

the same reasons the RFPs are relevant, the interrogatories also seek relevant information.

"The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (Williams, supra, 3 Cal.5th at pp. 552-553.)

In

Pioneer Electronics (USA), Inc. v. Superior Court ("Pioneer") (2007)

40 Cal.4th 360, 374-375, the Supreme Court of California affirmed a trial court's permitting discovery of complaining consumers' contact information unless, upon receiving notice, the consumers registered a written objection. In that matter, the plaintiff sought class action status and sought identifying information about purchasers. (Id. at p. 363.)

The

third parties here are either employees or persons who submitted complaints to Defendant. These third parties have a minimal expectation of privacy. The Special Interrogatories seek names, titles, phone numbers, and addresses. This information is not particularly sensitive. Further, Code of Civil Procedure section 2017.010 specifically contemplates parties obtaining discovery regarding the "identity and location of persons having knowledge of any discoverable matter[.]"

Defendant

is ordered to provide further responses to Special Interrogatories Nos. 20 to 32.

Plaintiff

requests \$2,000.00 in monetary sanctions against Defendant, reflecting four hours of attorneys' fees at \$500.00 per hour. (Motion (Special Interrogatories) p. 2; Innabi Declaration (Special Interrogatories) ¶ 10.)

Defendant

raises the same arguments it raised in opposition to the Motion (RFPs). For the same reasons, the court finds Defendant did not act with substantial justification and nothing before the court indicates imposing sanctions would be unjust.

The

court finds four hours is excessive because the Motions are set for hearing the same day. The court grants the request for sanctions in the reduced sum of \$1,500.00, reflecting three hours of attorneys' fees to prepare the Motion (Special Interrogatories) and reply, at \$500.00 per hour. (Innabi Declaration (Special Interrogatories) ¶ 10.)

VI.

MOTION

(FORM INTERROGATORIES)

a.

Legal

Standard

If the responding party responds to interrogatories with inappropriate objections or evasive or incomplete answers, the propounding party may move for an order compelling a further response. (Code Civ. Proc. §2030.300, subd. (a).)

Code

of Civil Procedure section 2030.300, subdivision (d) states: “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

b.

Discussion

Plaintiff

moves to compel Defendant to provide a further response to Form Interrogatory (Set One) No. 15.1. (Motion (Form Interrogatories) p. 2.)

In

opposition, Defendant states the Motion is moot because it provided a supplemental response to Form Interrogatory No. 15.1. (Opposition (Form Interrogatories) p. 6.) Defendant further argues sanctions are not warranted. (Opposition (Form Interrogatories) pp. 6-11.)

In

reply, Plaintiff agrees the Motion is moot because Defendant provided a supplemental response but argues the court should award sanctions pursuant to California Rules of Court, rule 3.1348(a) because Defendant served the supplemental response on August 26, 2026. (Reply (Form Interrogatories) p. 3.)

California

Rules of Court, rule 3.1348(a) states:

The court may award

sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

Defendant

provided a supplemental response to Form Interrogatory No. 15.1. The court denies the Motion as moot, so Plaintiff has not successfully moved to compel a further response. The court understands it may award sanctions under California Rules of Court, rule 3.1348(a), but denies Plaintiff's request the court does so under these circumstances.

VII.

MOTION

(RFAS)

a.

Legal

Standard

Per

Code of Civil Procedure section 2033.220, subdivision (a), "[e]ach answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits." Subdivision (b) provides that "[e]ach answer shall: (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge." (Code Civ. Proc., § 2033.220, subd. (b).) "If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Code Civ. Proc., §

2033.220, subd. (c).)

“On

receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

“The court shall impose a monetary sanction .

. . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

b.

Discussion

Plaintiff

moves to compel Defendant to provide a further response to RFA No. 26. (Motion (RFAs) p. 2.)

In

opposition, Defendant argues RFA No. 26 is disproportionate, reaches substances and areas that do not resemble the incident in this matter, and seeks irrelevant information because Plaintiff alleges Defendant’s employee created the condition. (Opposition (RFAs) pp. 5-8.) Defendant further argues sanctions are not warranted here. (Opposition (RFAs) pp. 8-12.)

RFA

No. 26 states “[a]dmit that in the 5 years prior to the INCIDENT YOU have had other CLAIMS of slip/trip and falls due to the presence of FOREIGN SUBSTANCES on the floor of the PREMISES.” (Separate Statement (RFAs) p. 2.)

Defendant

responded:

OBJECTION. This

request calls for speculation and seeks disclosure of expert opinion information in advance of the statutory scheme. This request is overly broad; this request seeks an admission of a fact which has no relevance to the subject matter of this lawsuit; as such, this request is not calculated to lead to the discovery of admissible evidence. [See Code of Civil Procedure, Section 2034.010, et seq.]

(Separate
Statement (RFAs) No. 2.)

“FOREIGN
SUBSTANCE” or “FOREIGN SUBSTANCES” are defined as “any transitory substance whether liquid or solid (or any residue thereof), that can create an UNSAFE CONDITION on floors of the PREMISES.” (Innabi Declaration (RFAs) Ex. A pdf p. 19.)

“CLAIMS”
is defined as “any incident involving any person who sustained any injury or damages as a result of being within the same area of the PREMISES at issue.” (Innabi Declaration (RFAS) Ex. A pdf p. 18.)

“PREMISES”
is defined as “the publically accessible areas of the ‘Smart & Final’ store located at 22631 Ventura Boulevard, Woodland Hills, CA 91364 and referenced in Plaintiff’s Complaint.” (Innabi Declaration (RFAs) Ex. A pdf p. 18.)

RFA
No. 26 is not speculative, it clearly asks Defendant to admit or deny if it received claims of certain defined incidents.

RFA
No. 26 does not seek disclosure of expert opinion information.

RFA
No. 26 is not overly broad. It is limited to the five years prior to the incident and limited to transitory substances within the publicly accessible areas of the Smart & Final store at issue here.

RFA
No. 26 seeks information relevant to Defendant’s discovery response that it had

no notice of the condition. (Innabi Declaration (Reply) (RFAs) Ex. A pdf pp. 14-15.)

Defendant

is ordered to provide a further response to RFA No. 26.

Plaintiff

requests \$2,000.00 in monetary sanctions against Defendant, reflecting four hours of attorneys' fees at \$500.00 per hour. (Motion (RFAs) p. 2; Innabi Declaration (RFAs) ¶ 10.)

Defendant

raises the same arguments it raised in opposition to the Motion (RFPs). For the same reasons, the court finds Defendant did not act with substantial justification and nothing before the court indicates imposing sanctions would be unjust.

The

court finds four hours is excessive because the Motions are set for hearing the same day. The court grants the request for sanctions in the reduced sum of \$1,500.00, reflecting three hours of attorneys' fees to prepare the Motion (Special Interrogatories) and reply, at \$500.00 per hour. (Innabi Declaration (Special Interrogatories) ¶ 10.)

VIII.

CONCLUSION

For

the foregoing reasons, the court grants the Motion (RFPs), Motion (Special Interrogatories), and Motion (RFAs). Defendant is ordered to provide further responses, as set forth above, within thirty (30) days of this order. The court also grants Plaintiff's requests for sanctions in the reduced sum of \$5,000.00 to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this order. The Motion (Form Interrogatories) is denied as moot.

Dated: September 10, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court